REPUBLIC OF KENYA

IN THE FICTIONAL COMMERCIAL COURT AT NAIROBI

CIVIL CASE NO. 124 OF 2026

AMANI KARIUKI

CLAIMANT

VERSUS

NORTHSTAR LOGISTICS LIMITED

RESPONDENT

BACKGROUND

This fictional dispute concerns a service agreement entered into on 3 February 2026 between Amani Kariuki and Northstar Logistics Limited. The claimant alleges that the respondent failed to deliver specialized computer equipment within the agreed period and later refused to refund a deposit of KES 480,000.

The respondent denies refusing a refund and states that delivery was delayed after the claimant requested a change to the delivery location. The parties exchanged several messages and later met in person in an attempt to resolve the dispute.

AGREED FACTS

The parties agree that the claimant paid a deposit of KES 480,000 on 4 February 2026. They also agree that the original delivery date was 12 March 2026 and that the equipment had not been delivered by that date.

The parties further agree that a meeting took place at the respondent's Westlands office on 14 March 2026. What was said and agreed during that meeting is disputed.

WITNESS STATEMENT OF AMANI KARIUKI

I, Amani Kariuki, state that on 12 March 2026 I contacted the respondent after the equipment failed to arrive. I was informed that a manager would contact me.

On 14 March 2026, I arrived at the respondent's Westlands office shortly before 8:00 PM. At approximately 8:08 PM, I spoke with an operations officer named Daniel Muriithi. I asked whether the equipment could be delivered the following morning or whether my deposit could be refunded.

At approximately 8:28 PM, the respondent's branch manager, Miriam Otieno, joined the discussion. She stated that the equipment was still at the warehouse and said that a refund could not be processed that evening. She asked me to return the next business day.

At approximately 8:47 PM, I received a message from the respondent's official customer service number stating: 'Your delivery issue has been escalated for management review.' I left the office shortly afterwards.

EVENTS OF 16 MARCH 2026

At 9:15 AM on 16 March 2026, I emailed the respondent requesting cancellation of the order and repayment of the KES 480,000 deposit. At 2:40 PM, I received an email stating that the request had been forwarded to the finance department.

WITNESS STATEMENT OF DANIEL MURIITHI

I am an operations officer employed by Northstar Logistics Limited. I recall meeting the claimant on 14 March 2026. The claimant arrived in the evening and was concerned about the delayed equipment.

At about 8:08 PM, I explained that the equipment had arrived at our warehouse but had not yet been scheduled for final delivery. I do not recall promising that it would be delivered the next morning.

The branch manager joined us later. My recollection is that she explained the refund procedure and said that finance staff were not available at that hour.

DOCUMENTARY EVIDENCE

Exhibit A is a payment receipt dated 4 February 2026 showing a deposit of KES 480,000. Exhibit B is the original service agreement. Exhibit C contains screenshots of messages exchanged between the claimant and the respondent from 12 to 16 March 2026.

Exhibit D is the claimant's email sent at 9:15 AM on 16 March 2026 requesting cancellation and a refund. Exhibit E is the respondent's reply sent at 2:40 PM confirming that the request had been forwarded to finance.

DISPUTED ISSUE

The principal disputed issue is whether the respondent was contractually entitled to retain the claimant's deposit after the missed delivery date, or whether the claimant became entitled to cancel the order and obtain a refund.

The claimant also alleges that the branch manager gave an assurance during the evening meeting that the matter would be resolved immediately on the next business day. The respondent disputes that any unconditional assurance was given and says that any refund remained subject to internal verification.

The court must therefore consider the written service agreement together with the parties' subsequent communications and the evidence concerning the meeting of 14 March 2026.

CROSS-EXAMINATION OF AMANI KARIUKI

During cross-examination, the claimant accepted that he had asked whether the delivery location could be changed from Nairobi CBD to Westlands. He denied that this request caused the original delivery deadline to be extended.

When asked about the 8:28 PM discussion, the claimant maintained that the branch manager said the refund would be addressed the next business day. He accepted that she did not state a specific time by which the money would be transferred.

CROSS-EXAMINATION OF DANIEL MURIITHI

Daniel Muriithi accepted that the equipment had not been delivered by 12 March 2026. He also accepted that the claimant raised the possibility of a refund during the 14 March meeting.

He stated that he could not authorize refunds and that he referred the claimant to the branch manager because the issue was outside his authority.

FINDINGS

For purposes of this fictional exercise, the court finds that the respondent failed to deliver the equipment by the contractual delivery date. The evidence also establishes that the claimant requested a refund no later than 16 March 2026.

The court places particular weight on the payment receipt, the written service agreement, the 8:47 PM customer-service message, and the email correspondence of 16 March 2026. Those records are consistent with the claimant's account that the delivery dispute had been escalated and that a refund request was under consideration.

CONCLUSION

The respondent is ordered, solely for purposes of this fictional training document, to refund the claimant's deposit of KES 480,000 within fourteen days. No finding in this document relates to any real person, company, court, or dispute.

TRAINING NOTICE: This entire case file is fictional and was created only for software, retrieval, chunking, and document-intelligence practice.